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IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH

STATE OF UTAH, Plaintiff, vs. TYLER JAMES ROBINSON Defendant.	OPPOSITION TO DEFENDANT'S APPLICATION FOR CERTIFICATE FOR ATTENDANCE OF OUT-OF- STATE WITNESS Case No. 251403576 JUDGE TONY F. GRAF, Jr.
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The Court should deny Defendant's application for a certificate to secure attendance of Mr. Lance Twiggs because Mr. Twiggs is not a material witness for the preliminary hearing.

BACKGROUND

On September 11, 2025, just after Tyler Robinson turned himself in, Mr. Twiggs gave a statement to investigators. He told investigators that Robinson had admitted via electronic messages to him and others that he had killed Charlie Kirk. Investigators photographed the messages from his phone.

On April 20, 2026, in preparation for the preliminary hearing, Mr. Twiggs gave a recorded statement under oath and after an admonition that any false statement would be punishable by law and could be charged as obstruction of justice. Mr. Twiggs was also given use-immunity by the United States Attorney's Office and the Utah County Attorney's Office—meaning that his statements at that April 20 meeting could not be used against him. *See* Utah Code § 77-22b-1. Mr. Twiggs's April 20 statement was consistent with his September 11 statement. In it, Mr. Twiggs described several of Defendant's statements to him: that Defendant killed Charlie Kirk (count 1, aggravated murder, and count 2, felony discharge of a firearm), that he hid the firearm (count 3, obstruction of justice), disposed of clothing (count 4, obstruction of justice), and that he told Mr. Twiggs not to speak to law enforcement (count 4, witness tampering). Most of these statements were through electronic messages from Defendant and one came from a handwritten note.

At the preliminary hearing, the State intends to offer Mr. Twiggs's April 20, 2026, recorded statement, as well as the photographs of Defendant's messages which were found on Mr. Twiggs's phone during the September 11 interview.

INTRODUCTION

To secure the attendance of an out-of-state witness at a proceeding in this state, a defendant must show that the witness's testimony is material to the proceeding. Testimony is material only when it would make a difference in the outcome. While Defendant declares that Mr. Twiggs's cross-examination is material, Defendant makes no effort to show how that could be given the limited nature of a preliminary hearing and the State's low evidentiary burden. Defendant has not demonstrated how cross-examination would make any difference here.

ARGUMENT

Defendant has not shown that Mr. Twiggs is a material witness for purposes of the preliminary hearing given the State's limited burden of proof at that hearing.

To obtain a certificate to secure the attendance of an out-of-state witness, Defendant must show that the person "is a *material* witness" in a Utah prosecution. Utah Code § 77-21-3 (emphasis added). And before a court in the foreign state can issue a summons to command the witness's appearance in Utah, a judge in the foreign state must find, among other things, that the witness is "material and necessary" to the Utah proceeding. *See, e.g.* Utah Code § 77-21-2 (Utah's adoption of the Uniform Act to Secure the Attendance of Witnesses from Without a State in Criminal Proceedings). The judge in the foreign state makes this finding based on the Utah court's certificate. *See id.*

Defendant has not made the required showing that Mr. Twigg's cross-examination would be material to the preliminary hearing. Rather, Defendant merely declares, rather than demonstrates, that Mr. Twigg's cross-examination would be material. *See* Application at 7-9. Regardless, given the State's limited burden of proof, Defendant has not shown that Mr. Twigg's cross-examination would be material under any applicable definition of that term.

A. Defendant has not shown that the cross-examination would be “material” as Utah law defines that term.

Testimony is “material,” when it “would affect the outcome of the [proceeding].” *State v. Schreuder*, 712 P.2d 264, 275 (Utah 1985). In *Schreuder*, the Utah Supreme Court affirmed a trial court's refusal to issue a certificate to secure the attendance of an out-of-state witness for a criminal trial because the testimony would not have had “any effect on the verdict,” and was therefore not material. *Id.* at 273-75.

Likewise, Defendant has not shown that Mr. Twigg's cross-examination would be material to the preliminary hearing. Cross-examination at a preliminary hearing is material to the probable-cause standard only when that examination can demonstrate that the witness cannot be believed at all. As this Court is well aware, the State's burden at the preliminary hearing is “‘light.’” *State v. Lopez*, 2020 UT 61, ¶ 46, 474 P.3d 949 (quoting *State v. Jones*, 2016 UT 4, ¶ 12, 365 P.3d 1212). “All that is necessary is a presentation of ‘evidence sufficient to support a reasonable belief that an offense has been committed and that the defendant committed it.’” *Id.* (quoting *State v. Schmidt*, 2015 UT 65, ¶ 17, 356

P.3d 1204). A preliminary hearing does not serve a discovery purpose, *State v. Labrum*, 2025 UT 12, ¶ 59, 568 P.3d 1075, and defendants cannot use it as a discovery device to obtain notice of the evidence, facts, or theory of the State’s case, *see id.*; *see also State v. Williamson*, 2024 UT App 141, ¶ 48, 558 P.3d 143.

The preliminary hearing magistrate “‘must view all evidence in the light most favorable to the prosecution and draw all reasonable inferences in favor of the prosecution.’” *Id.* at 48 (quoting *Schmidt*, 2015 UT 65, ¶ 4). The only circumstance under which a preliminary hearing magistrate “‘may disregard or discredit’ evidence” is if that evidence is “‘wholly lacking and incapable of creating a reasonable inference regarding a portion of the prosecution’s claim.’” *Id.* at 47 (quoting *State v. Virgin*, 2006 UT 29, ¶ 24, 137 P.3d 787).

Defendant merely declares, without any specifics, that cross-examination of Mr. Twiggs “regarding the evidence, circumstances surrounding the evidence, state of mind, and other considerations relevant to Mr. Twiggs’ reliability and credibility” makes his cross-examination material. Application at 8. But cross-examination is not necessary to test Mr. Twiggs’s reliability at the preliminary hearing. His testimony is already deemed reliable. *See Utah R. Evid. 1102(b)(8)*. Nor is his credibility at issue at the preliminary hearing. *See Virgin*, 2006 UT 29, ¶ 24. That is a question only the jury can resolve. *See id.*

Under the probable-cause standard, this Court is duty-bound to disregard mere potential concerns regarding Mr. Twiggs’s testimony or seeming inconsistencies that

cross-examination might create. *See Lopez*, 2020 UT 61, ¶ 48 (requiring magistrate to view all evidence and inferences in light most favorable to the State). Even if Mr. Twiggs were to testify inconsistently with his recorded statement—which is unlikely given that his recorded statement was consistent with his prior statement, was given under oath and after an admonition that a false statement was punishable, and is corroborated by Defendant’s electronic and handwritten messages—the Court could not weigh those inconsistencies against the State. *See id.* It therefore makes no difference that Mr. Twiggs has been granted use immunity, or that cross-examination might reveal some other reason to perhaps question portions or even all of his statement. This Court could disregard Mr. Twiggs’s statement only if it were “wholly lacking and incapable of creating a reasonable inference regarding a portion of the prosecution’s claim.” *Virgin*, 2006 UT 29, ¶ 24. Defendant makes no effort to show how Mr. Twiggs’s cross-examination would even approach that standard.

Instead, Defendant argues that *Schreuder*’s definition of “material” should not apply because that case addressed the “requirement to obtain relief after conviction on a claim that the district court erred in failing to issue a certificate for an out-of-state witness.” *Id.* at 7 n.3 (italics omitted). But *Schreuder* is controlling precedent that analyzed the very term this Court must apply in ruling on Defendant’s application. *See* 712 P.2d at 273-75.

B. Defendant has not shown that the cross-examination will be “material” under other states’ definition of that term.

Even if this Court were to apply Defendant’s alternative definition of “material,” he still has not shown that Mr. Twiggs’s live cross-examination qualifies. *See* Application at

7-9. Relying on sister-state authority, Defendant argues that testimony is material under the Uniform Act ““if it bears on a fact of consequence to an issue in the case.”” Application at 7 (quoting *In re Thompson*, 309 A.3d 51, 64 (Md. 2024)). Defendant also relies on *Davenport v. State*, 711 S.E.2d 699, 703 (Ga. 2011); *Wyman v. State*, 217 P.3d 572, 583 (Nev. 2009); and *State v. Bastos*, 985 So.2d 37, 41 (Fla. Dist. Ct. App. 2008), all of which similarly define “material.” See Application at 7-8. But these cases are neither controlling, nor persuasive. Rather, all are distinguishable because they address subpoenas for witnesses to testify at a *trial*, not a preliminary hearing with its limited burden of proof. See *In re Thompson*, 309 A.3d at 54-55; *Davenport*, 711 S.E.2d at 700; *Wyman*, 217 P.3d at 597-98; *State v. Bastos*, 985 So.2d at 40-41.

But even applying the definition of “material” from these cases, the “fact of consequence” here is whether the State has met its low burden to demonstrate probable cause. For the same reasons that Defendant has not shown that Mr. Twiggs’s cross-examination is “material” under *Schroeder*, he has not shown how the cross-examination would bear “on a fact of consequence” at the preliminary hearing, see *In re Thompson*, 309 A.3d at 64. The result is the same under either definition.

C. *State v. Lopez* recognizes that a defendant’s opportunity to call witnesses at a preliminary hearing is limited and depends on the limited nature of that hearing.

The Utah Supreme Court’s opinion in *State v. Lopez*, 2020 UT 61, 474 P.3d 949 (2020), supports the conclusion that Mr. Twiggs’s cross-examination is not material to the

preliminary hearing. First, contrary to Defendant’s contention that he has a right to compulsory process at his preliminary hearing, Application at 5-6, the *Lopez* court recognized that defendants do not have an unqualified right to compel witnesses to testify at preliminary hearings, 2020 UT 61, ¶¶ 40-42. Rather, whether “a defendant has a rule-based, statutory, or constitutional ‘compulsory process’ right to subpoena witnesses to testify at a preliminary hearing” is an open question. *See id.* at ¶ 42. And although the *Lopez* court did not resolve that question, it recognized that even assuming a defendant possesses some right to compel witnesses to testify at a preliminary hearing (as opposed to merely “call” witnesses who agree to appear), that right is “not categorical or unlimited.” *Id.* ¶ 42; *see also* ¶ 40 n.16 (recognizing that rule 7B(a) of the Utah Rules of Criminal Procedure grants defendants only the right to “call” witnesses to testify at a preliminary hearing).

Second, *Lopez* recognized that a defendant’s right to subpoena a witness at a preliminary hearing “must account for the circumscribed function of the preliminary hearing (to determine whether there is probable cause to justify bindover) as well as the limited burden of proof on the State.”¹ *Id.* ¶ 4. Given the limited nature of the preliminary hearing, the *Lopez* court concluded that it would be unreasonable to allow a defendant to subpoena a crime victim to testify at a preliminary hearing unless the defendant could demonstrate that additional live testimony from the victim would be “necessary to present

¹ Because the subpoena in *Lopez* was issued to a crime victim, an additional factor in determining the reasonableness of enforcing compliance with the subpoena was “the established rights of victims at [a preliminary] hearing.” *Id.* ¶ 4.

evidence on a specific point material to the probable-cause determination, and that is reasonably likely to defeat the State's *prima facie* showing of probable cause." *Id.* at 54.

Lopez therefore confirms that a defendant's right to subpoena witnesses at a preliminary hearing is both limited and depends on "the circumscribed function of the preliminary hearing" and "the limited burden of proof on the State." 2020 UT 61, ¶ 4. Given these restrictions on a defendant's right to call witnesses at a preliminary hearing, Defendant has not shown that Mr. Twiggs's cross-examination would be material to the narrow probable-cause determination.

In sum, Defendant's unsupported declaration that Mr. Twiggs's cross-examination is necessary to test his reliability and credibility fails to demonstrate that his cross-examination will "affect the outcome" of the preliminary hearing, *Schreuder*, 712 P.2d at 275, or will bear "on a fact of consequence" at that hearing, *In re Thompson*, 309 A.3d at 64. He therefore has not shown that Mr. Twiggs's cross-examination is material to the preliminary hearing.

CONCLUSION

For the foregoing reasons, the Court should deny Defendant's Application for Certificate for Attendance of an Out-of-State Witness.

Dated June 16, 2026.

Utah County Attorney's Office

s/ Christopher D. Ballard
Christopher D. Ballard
Deputy Utah County Attorney

CERTIFICATE OF SERVICE

I certify that on June 16, 2026, I filed the foregoing OPPOSITION TO DEFENDANT'S APPLICATION FOR CERTIFICATE FOR ATTENDANCE OF OUT-OF-STATE WITNESS through the court's electronic filing system, which served a copy on all counsel or record.

s/ Christopher D. Ballard
Christopher D. Ballard